

Jasbir v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 15 April 2024 · 2024:AHC:65135-DB · WRIT - C No. - 9507 of 2024 · **Disposed; objection to provisional assessment under Supply Code.**

HEADNOTE

A recovery certificate for alleged theft dues having been withdrawn, and a fresh provisional assessment notice issued, the writ was disposed of without a decision on the dues. The consumer may object to that notice, and the Electricity Department must then follow the procedure in the Electricity Supply Code, 2005. The compounding application under section 152 was not decided.

FACTUAL SUMMARY

Jasbir challenged a recovery certificate dated 6 June 2023, issued by respondent no. 3, for electricity dues in a theft case. At the first hearing he said he had sought compounding under section 152 of the Electricity Act, 2003, against a demand of the Executive Engineer, Electricity Distribution Division-III, Shamli. On 2 April 2024 the department wrote to the Additional District Magistrate (Finance and Revenue) withdrawing the recovery notice, and said a provisional assessment notice had already issued, with a final order to follow his reply.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

provisional assessment after withdrawal of theft recovery

HOLDING

Where the licensee has withdrawn the recovery notice for alleged theft dues and issued a fresh provisional assessment, the writ against the recovery certificate needs no further direction. The consumer may file an objection to that provisional assessment, and the licensee must proceed strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. The court does not decide the dues. ¶ 2-3

PRINCIPLE TAGS

withdrawn-recovery-provisional-assessment-supply-code After the department withdrew the theft recovery notice and issued a fresh provisional assessment, the Division Bench disposed of the writ by leaving the consumer to object and directing the department to follow the Electricity Supply Code, 2005, without adjudicating the assessment. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE APPLICATION FOR COMPOUNDING UNDER SECTION 152 OF THE ELECTRICITY ACT, 2003 SHOULD BE ALLOWED

Counsel stated on 20 March 2024 that a compounding application had been filed, and the department was granted time to say whether any order had been passed on it. The order of 15 April 2024 does not decide that application. ¶ 2

NOT DECIDED — THE LEGALITY OR QUANTUM OF THE DUES UNDER THE FRESH PROVISIONAL ASSESSMENT

Left to the petitioner's objection and a final order by the Electricity Department under the Supply Code. ¶ 2-3